26STCV10205 26STCV10205

County: los-angeles

Division: Civil Law and Motion

Department: 134

Hearing date: 2026-09-01

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Case Number: 26STCV10205 Hearing Date: September 1, 2026 Dept: 134

The
following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:26 PM on August 31, 2026.

Rule
of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling
of the court if the court has not directed oral argument by its tentative
ruling and notice of intent to appear has not been given.”

The
Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant
to California Rule of Court 3.1308(a)(1).

No
later than 4:00 p.m. on August 31, 2026, the moving and opposing parties must provide
notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends
to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by
email to , with opposing parties copied on the email. The high volume of telephone calls to
Department 734 may delay the Court’s receipt of notice, so telephonic notice to
213-830-0776 should be reserved for situations where parties are unable to give
notice by email.

Petitioner
suffered injuries in a motor vehicle accident on March 14, 2024, while driving in
the course and scope of rideshare services for Lyft. Respondents are insurance carriers
which issued policies both of which contain an arbitration provision requiring that
disputes regarding benefits owed under the policy be resolved through binding arbitration.

Petitioner filed a petition to open an unlimited civil action in order to obtain a case number and establish jurisdiction so that Petitioner may file the appropriate petition and motion to compel arbitration and enforce the arbitration provision contained in the policies.

Petitioner moves to compel consolidated arbitration proceedings.

TENTATIVE RULING

Petitioner Fariba Salmani's motion to compel a consolidated arbitration is GRANTED. The parties shall meet and confer as to the arbitrator. Absent such agreement, any of the parties may bring a noticed motion pursuant to Code Civ. Proc. § 1281.6 for the appointment of an arbitrator.

ANALYSIS

Motion To Consolidate Arbitration Proceedings

Request For Judicial Notice

Petitioner's request that the Court take judicial notice of various Superior Court rulings is DENIED as not relevant to this Court's analysis[1].

The Court need only take judicial notice of relevant materials. (Mangini v. R.J. Reynolds Tobacco Co. (1994) 7 Cal.4th 1057, 1063, overruled in part on other grounds noted in In re Tobacco Cases II (2007) 41 Cal.4th 1257, 1276.) The Court may deny a request for judicial notice of material unnecessary to its decision. (Rivera v. First DataBank, Inc. (2010) 187 Cal.App.4th 709, 713.) "[A] written trial court ruling has no precedential value. (In re Molz (2005) 127 Cal.App.4th 836, 845 [26 Cal. Rptr. 3d 131] ["trial court decisions, of course, have no precedential authority"].) The request for judicial notice is denied." (Bolanos v. Superior Court (2008) 169 Cal. App. 4th 744, 761.)

Discussion

Petitioner

moves to compel consolidated arbitration proceedings involving Respondents Mobilitas Insurance Company and United States Fire Insurance Company in one single joint arbitration proceeding addressing liability and damages arising from the March 14, 2024 motor vehicle accident.

Respondent Mobilitas Insurance Company does not oppose such consolidated arbitration. However, Mobilitas requests that the Court not appoint an arbitrator from Petitioner's proposed list. Mobilitas has proposed the following arbitrators: Daryl Forgey, Bryan Foster and Sean Burke. Arbitration should take place at a mutually agreeable date and time.

Respondent United States Fire Insurance Company opposes consolidation because it did not issue an uninsured motors policy. Respondent argues as follows: There are two separate insurance carriers, operating under fundamentally different policy types and governed by distinct arbitration agreements. Mobilitas' UIM/UM policy obligates it to pay compensatory damages the insured is legally entitled to recover from the owner or driver of an uninsured motor vehicle. USFIC's Occupational Accident Insurance ("OAI") policy is limited to reimbursing reasonable, medically necessary charges for diagnosis or treatment of an occupational accident. These coverages address entirely different categories of loss, arise under different policy provisions, and serve different compensatory purposes.

Second, Petitioner conflates two distinct statutory frameworks. A petition to compel arbitration of a UIM/UM dispute under Insurance Code § 11580.2 does not authorize the Court to compel arbitration under a separate contractual arbitration agreement governed by Code of Civil Procedure § 1281.2. These statutory schemes carry different procedural requirements and different scopes.

A party to an arbitration agreement may petition the court to consolidate separate arbitration proceedings, and the court may order consolidation of separate arbitration proceedings when:

(1) Separate arbitration agreements or proceedings exist between the same parties; or one party is a party to a separate arbitration agreement or proceeding with a third party; and

(2) The disputes arise from the same transactions or series of

related transactions; and

(3) There is common issue or issues of law or fact creating the possibility of conflicting rulings by more than one arbitrator or panel of arbitrators.

If all of the applicable arbitration agreements name the same arbitrator, arbitration panel, or arbitration tribunal, the court, if it orders consolidation, shall order all matters to be heard before the arbitrator, panel, or tribunal agreed to by the parties. If the applicable arbitration agreements name separate arbitrators, panels, or tribunals, the court, if it orders consolidation, shall, in the absence of an agreed method of selection by all parties to the consolidated arbitration, appoint an arbitrator in accord with the procedures set forth in Section 1281.6.

In the event that the arbitration agreements in consolidated proceedings contain inconsistent provisions, the court shall resolve such conflicts and determine the rights and duties of the various parties to achieve substantial justice under all the circumstances.

The court may exercise its discretion under this section to deny consolidation of separate arbitration proceedings or to consolidate separate arbitration proceedings only as to certain issues, leaving other issues to be resolved in separate proceedings.

This section shall not be applicable to an agreement to arbitrate disputes as to the professional negligence of a health care provider made pursuant to Section 1295.

(Code Civ. Proc. § 1281.3.)

Both the specific requirements of section 1281.3, and the policies underlying its enactment, were satisfied in this case. Arbitration of respondents' uninsured motorist claims was required under a contractual provision mandated by section 11580.2 of the Insurance Code, to which appellants and respondents were either parties or third party beneficiaries. (See Mayflower Ins. Co. v. Pellegrino (1989) 212 Cal. App. 3d 1326, 1331-1332 [261 Cal. Rptr. [*1007] 224].) In addition to this "arbitration agreement[]," all the parties to the court action were required to participate in "separate arbitration . . . proceedings" under the court's orders pursuant to section 1141.10 et seq. Moreover, it is beyond cavil that the parties' disputes arose "from the same transaction[]" and involve "common issues of law or fact creating the possibility of conflicting rulings by more than one arbitrator . . . ." Once the enumerated criteria have been satisfied, there is no reason to deny consolidation under section 1281.3, unless it would impair a substantial right or obligation of a party to the applicable arbitration agreements. (Citations omitted.)

There is no indication on this record that any "substantial right or obligation" of the appellants was impaired by the trial court's order consolidating the uninsured motorist and judicial arbitrations. Appellants had ample notice that the "combined" arbitration was being ordered under the authority of Insurance Code section 11580.2 and section 1141.10. They also had notice that the arbitration would be conducted before an arbitrator selected under procedures applicable to judicial arbitrations, and raised no objection to the forum, arbitrator, or any other procedural aspect of the court-ordered arbitration. They point to no evidentiary or procedural advantage of private arbitration they lost, or any disadvantage they suffered, by proceeding instead under section 1141.10 et seq. Thus, we conclude that the order compelling the parties to participate in the "combined" arbitration was a proper exercise of the trial court's authority and discretion.

(Gordon v. G.R.O.U.P. (1996) 49 Cal.App.4th 998, 1006-07 [bold emphasis added].)

Here, neither Respondent denies that they are required to arbitrate Petitioner's claims. (Code Civ. Proc. § 1281.3(1) Neither Respondent denies that the claims against each Respondent arise from the same transactions or series of related transactions. (Code Civ. Proc. § 1281(2).) As pointed out by Respondent Mobilitas, there exists a common issue or issues of law or fact creating the possibility of conflicting rulings by more than one arbitrator or panel of arbitrators (Code Civ. Proc. § 1281(3)) by virtue of Ins Code § 11580.2 and Bus & Prof Code § 7455.

Ins. Code § 11580.2(h) provides:

(h) An insured entitled to recovery under the uninsured motorist endorsement or coverage shall be reimbursed within the conditions stated herein without being required to sign any release or waiver of rights to which he or she may be entitled under any other insurance coverage applicable; nor shall payment under this section to the insured be delayed or made contingent upon the decisions as to liability or distribution of loss costs under other bodily injury

liability insurance or any bond applicable to the accident. Any loss payable
under the terms of the uninsured motorist endorsement or coverage to or for any
person may be reduced:

(1) By the amount paid and the present
value of all amounts payable to him or her, his or her executor, administrator,
heirs, or legal representative under any workers' compensation law, exclusive
of nonoccupational disability benefits.

(2) By the amount the insured is entitled
to recover from any other person insured under the underlying liability insurance
policy of which the uninsured motorist endorsement or coverage is a part, including
any amounts tendered to the insured as advance payment on behalf of the other person
by the insurer providing the underlying liability insurance.

(Ins. Code § 11580.2(h)[bold emphasis
added].)

Loss and Liability Protection. No network
company shall operate in California for more than 90 days unless the network company
carries, provides, or otherwise makes available the following insurance coverage:

(a) For the benefit of app-based drivers,
occupational accident insurance to cover medical expenses and lost income resulting
from injuries suffered while the app-based driver is online with a network company's
online-enabled application or platform. Policies shall at a minimum provide the
following: [omitted]

. . .

(e) Any benefits provided to an app-based
driver under subdivision (a) or (b) of this section shall be considered amounts
payable under a worker's compensation law or disability benefit for the purpose
of determining amounts payable under any insurance provided under Article 2 (commencing
with Section 11580) of Chapter 1 of Part 3 of Division 2 of the Insurance Code.

(Bus & Prof Code § 7455(a) & (e)[bold emphasis added].)

Respondent Mobilitas issued a policy
to Petitioner providing Uninsured/Underinsured Motorist Coverage while driving for

Lyft. (Petition, ¶ 3.) Respondent Blue Star [United State Fire Insurance Company] issued an occupational accident insurance policy to Petitioner providing coverage for injuries sustained while Petitioner was engaged in rideshare driving services, including while driving for Lyft. (Petition, ¶ 4.) It is apparent that the issues presented by Ins. Code § 11580.2(h) and Bus. & Prof. Code § 7455(e) present common issues of fact which should be tried together.

United State Fire Insurance Company
does not articulate any evidentiary or procedural advantage of arbitration it will suffer by proceeding in a consolidated arbitration (Gordon, supra, 49 Cal.App.4th at 1006-07), other than by conclusory statements.

As such, the motion to compel a consolidated
arbitration is GRANTED. The parties shall meet and confer as to the arbitrator. Absent such agreement, any of the parties may bring a noticed motion pursuant to Code Civ. Proc. § 1281.6 for the appointment of an arbitrator.

[1] The
Court is aware that the request for judicial notice includes this Court's
ruling in Rivera, Omar v. Mobilitas Insurance Company and Blue Star Insurance Company (LASC Case No. 26STCV09082). The ruling in that case is not binding in that case. Of course, the Court may choose to utilize the same reasoning it has employed before.